

ASCII MASTER FLOW – PANEL 1/12: Citizenship, rights and one national membership

CITIZENSHIP = legally recognised membership of the Indian political community

--- citizen-specific text: Articles 15, 16, 19 and 29

--- person-based text: Articles 14, 20, 21 and 25

--- Article 22(3)(a): enemy alien excluded only from clauses (1)-(2)

--- vote: statutory right requiring citizenship plus electoral conditions

CITIZENSHIP = membership | DOMICILE = permanent legal home | RESIDENCE = factual link

ONE INDIAN CITIZENSHIP; constitutionally bounded regional protections are not State citizenship.

ASCII MASTER FLOW – PANEL 2/12: Articles 5-7 – commencement decision tree

AT COMMENCEMENT: 26 JANUARY 1950

- +-- ARTICLE 5: domicile + birth | parentage | five-year ordinary residence
- +-- ARTICLE 6: Pakistan-to-India migration
 - | before 19 Jul 1948 -> ordinarily resident since migration
 - | on/after 19 Jul 1948 -> application + six months + registration
- +-- ARTICLE 7: India-to-Pakistan migration after 1 Mar 1947 -> excluded
 - resettlement/permanent-return permit -> post-19 Jul Article 6 route

ASCII MASTER FLOW – PANEL 3/12: Articles 8-11 – diaspora, disqualification, continuity, Parliament

ARTICLE 8 -> Indian origin abroad + diplomatic/consular registration

ARTICLE 9 -> voluntary foreign citizenship blocks Articles 5, 6 and 8 claims

ARTICLE 10 -> citizenship continues subject to parliamentary law

ARTICLE 11 -> Parliament regulates acquisition, termination and every other matter

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CITIZENSHIP ACT, 1955

CONTROL: later termination also rests on Section 9; Article 11 remains constitutionally reviewable.

ASCII MASTER FLOW – PANEL 4/12: Five acquisition routes and exact gates

CITIZENSHIP ACT, 1955

--- BIRTH: place + date + parental status + Section 3(2) exceptions

--- DESCENT: citizen parent + date + consular/declaration controls

--- REGISTRATION: listed category + residence calculation + oath + decision

--- NATURALISATION: 12 months + 11/14 aggregate + Third Schedule tests

--- INCORPORATION: Central Government order for newly incorporated territory

NO AUTOMATIC CITIZENSHIP from marriage, ancestry, property, residence or an identity card.

ASCII MASTER FLOW – PANEL 5/12: Birth, descent, registration and illegal-migrant control
BIRTH IN INDIA

1950-before 1 Jul 1987 -> birth generally sufficient, subject to exceptions

1 Jul 1987-before 3 Dec 2004 -> either parent citizen

from 3 Dec 2004 -> both citizens OR one citizen + other not illegal migrant

Section 3(2) -> diplomat-immunity and enemy-alien/enemy-occupation exceptions

DESCENT: before 10 Dec 1992 father rule; later either parent; from 3 Dec 2004 registration controls.

REGISTRATION: category first; seven years = 12 immediate months + 6 of preceding 8.

ASCII MASTER FLOW – PANEL 6/12: Loss and procedural safeguards

RENUNCIATION -> full-age declaration; minor follows, with statutory resumption window

TERMINATION -> voluntary acquisition of foreign citizenship; Section 9

DEPRIVATION -> eligible category + listed ground + public-good finding + procedure

grounds: fraud | disaffection | enemy dealing | specified conviction | seven years abroad

TRAP: citizenship by birth/descent is outside Section 10(1)'s opening category gate.

ASCII MASTER FLOW – PANEL 7/12: Assam Accord, Section 6A and controlling judgment

ASSAM-SPECIFIC SECTION 6A

before 1 Jan 1966 -> deemed citizens from 1 Jan 1966

1 Jan 1966-before 25 Mar 1971 -> detection + registration + ten-year vote exclusion

on/after 25 Mar 1971 -> no Section 6A protection

IN RE: SECTION 6A – 17 OCTOBER 2024

4:1 majority upheld validity; implementation machinery found inadequate

Pardiwala J dissented prospectively; majority remains present law

NRC reference = midnight 24 March 1971; never confuse with CAA 2014.

ASCII MASTER FLOW – PANEL 8/12: NRI, PIO and OCI – diaspora without dual citizenship

NRI = Indian citizen ordinarily abroad

PIO card = legacy scheme merged into OCI in 2015

OCI = foreign national with statutory card under Sections 7A-7D

- 2021: lifelong multiple-entry visa + notified limited parity

- no vote, Indian passport, legislature or citizen-reserved high office

- special permission for listed research/religious/journalistic/protected-area activity

- 11 Aug 2025 S.O. 3662(E): specified sentence/charge-sheet cancellation ground

OCI is not Indian citizenship and not constitutional dual citizenship.

ASCII MASTER FLOW – PANEL 9/12: CAA class, exclusions and 2024-2026 procedure

CAA CLASS = Hindu | Sikh | Buddhist | Jain | Parsi | Christian

from Afghanistan | Bangladesh | Pakistan

entered on/before 31 Dec 2014 + specified exemption

--- application for registration/naturalisation; no automatic citizenship

--- aggregate naturalisation limb 11 years -> 5; immediate 12 months remains

--- excluded: Sixth Schedule tribal areas in four named States + Inner Line areas

11 MAR 2024 Rules -> electronic committee process

19 AUG 2026 G.S.R. 742(E) + S.O. 4583(E) -> specified Collector route + pending-file transfer

The 2026 procedure does not change community, country, area or 2014 eligibility controls.

ASCII MASTER FLOW – PANEL 10/12: Equality, refugees and legal-field boundaries

ARTICLE 14 REVIEW

comparator -> intelligible differentia -> rational nexus -> manifest arbitrariness

defence: targeted humanitarian facilitation and staged reform

challenge: religion/country under-inclusion and secularism

STATUS CHECKED 7 SEP 2026: operative; no located final Supreme Court merits judgment.

KEEP DISTINCT:

citizenship | foreigners/entry | passport | refugee/asylum | domicile/reservation.

India has no generic statutory refugee status automatically convertible into citizenship.

ASCII MASTER FLOW – PANEL 11/12: Exact PYQ and proof controls

2018 PRELIMS GS-I Q12

Aadhaar as citizenship/domicile proof + deactivation proposition

Key unavailable; no answer letter stated. Concept: Aadhaar does not itself prove status.

2021 PRELIMS GS-I Q89

one citizenship/one domicile | birth-only President | deprivation-impossible claim

Key unavailable; no answer letter stated. Test Articles 58 and Section 10 separately.

PROOF: citizenship certificate direct; passport/EPIC relevant but dispute-sensitive; Aadhaar not status.

DIRECT OWNED MAINS PYQ: none located in audited 2018-2026 ledgers.

ASCII MASTER FLOW – PANEL 12/12: 10/15/20-mark answer spine and qualified conclusion

10 MARKS / 150 WORDS

definition -> three legal anchors -> one distinction/current caveat -> qualified verdict

15 MARKS / 250 WORDS

thesis -> Articles 5-11 -> statutory mechanism -> named judgment -> balance -> verdict

20 MARKS / 250 WORDS

exact class/doctrine -> argument + counterargument -> evidence -> federal/social impact

-> current procedure -> constitutional test -> safeguards -> conclusion

FINAL LINE: Indian citizenship is constitutionally founded, statutorily administered and judicially reviewable; equal membership must be reconciled with lawful migration control, regional protection, diaspora access and non-arbitrary humanitarian classification.